

different, however. The Fifth Amendment, which is applicable in the District of Columbia, does not contain an equal protection clause as does the Fourteenth Amendment which applies only to the states. But the concepts of equal protection and due process, both stemming from our American ideal of fairness, are not mutually exclusive. The "equal protection of the laws" is a more explicit safeguard of prohibited unfairness than "due process of law," and, therefore, we do not imply that the two are always interchangeable phrases. But, as this Court has recognized, discrimination may be so unjustifiable as to be violative of due process.²

Classifications based solely upon race must be scrutinized with particular care, since they are contrary to our traditions and hence constitutionally suspect.³ As long ago as 1896, this Court declared the principle "that the Constitution of the United States, in its present form, forbids, so far as civil and political rights are concerned, discrimination by the General Government, or by the States, against any citizen because of his race."⁴ And in *Buchanan v. Warley*, 245 U. S. 60, the Court held that a statute which limited the right of a property owner to convey his property to a person of another race was, as an unreasonable discrimination, a denial of due process of law.

Although the Court has not assumed to define "liberty" with any great precision, that term is not confined to mere freedom from bodily restraint. Liberty under law extends to the full range of conduct which the individual is free to pursue, and it cannot be restricted except for a

² *Detroit Bank v. United States*, 317 U. S. 329; *Currin v. Wallace*, 306 U. S. 1, 13-14; *Steward Machine Co. v. Davis*, 301 U. S. 548, 585.

³ *Korematsu v. United States*, 323 U. S. 214, 216; *Hirabayashi v. United States*, 320 U. S. 81, 100.

⁴ *Gibson v. Mississippi*, 162 U. S. 565, 591. Cf. *Steele v. Louisville & Nashville R. Co.*, 323 U. S. 192, 198-199.